

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Noe Lebanidze	Team: Squad #11	CCRB Case #: 202400652	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Sunday, 01/21/2024 8:00 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 7/21/2025	Precinct: 72		
Date/Time CV Reported Mon, 01/22/2024 11:02 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Sun, 01/21/2024 11:02 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. PO Jason Toussaint	18117	975214	072 PCT
2. SGT Tonica Corlette	05056	933977	072 PCT
3. PO Pedro Rodriguez	28987	942490	072 PCT
4. PO Ryan Thatcher	03463	973804	072 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Justin Leung	26248	972065	072 PCT
2. PO Richard Law	16697	960788	072 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Tonica Corlette	Abuse: Sergeant Tonica Corlette entered § 87(2)(b) in Brooklyn.	A . Within NYPD Guidelines
B . PO Pedro Rodriguez	Abuse: Police Officer Pedro Rodriguez entered § 87(2)(b) in Brooklyn.	B . Within NYPD Guidelines
C . PO Pedro Rodriguez	Force: Police Officer Pedro Rodriguez used physical force against § 87(2)(b)	C . Substantiated
D . PO Pedro Rodriguez	Discourtesy: Police Officer Pedro Rodriguez acted discourteously toward § 87(2)(b)	D . Unfounded
E . PO Pedro Rodriguez	Discourtesy: Police Officer Pedro Rodriguez spoke discourteously to § 87(2)(b)	E . Substantiated
F . SGT Tonica Corlette	Abuse: Sergeant Tonica Corlette refused to provide her name to § 87(2)(b)	F . Unfounded
G . SGT Tonica Corlette	Abuse: Sergeant Tonica Corlette refused to provide her shield number to § 87(2)(b)	G . Unfounded
H . PO Pedro Rodriguez	Abuse: Police Officer Pedro Rodriguez refused to provide his name to § 87(2)(b)	H . Unfounded
I . PO Pedro Rodriguez	Abuse: Police Officer Pedro Rodriguez refused to provide his shield number to § 87(2)(b)	I . Unfounded
J . PO Ryan Thatcher	Abuse: Police Officer Ryan Thatcher refused to provide his name to § 87(2)(b)	J . Unfounded
K . PO Ryan Thatcher	Abuse: Police Officer Ryan Thatcher refused to provide his shield number to § 87(2)(b)	K . Unfounded

Officer(s)	Allegation	Investigator Recommendation
L . PO Jason Toussaint	Abuse: Police Officer Jason Toussaint refused to provide his name to § 87(2)(b)	L . Unfounded
M . PO Jason Toussaint	Abuse: Police Officer Jason Toussaint refused to provide his shield number to § 87(2)(b)	M . Unfounded
N . SGT Tonica Corlette	Abuse: Sergeant Tonica Corlette failed to explain to § 87(2)(b) the reason for a law enforcement activity.	N . Unfounded
O . PO Pedro Rodriguez	Abuse: Police Officer Pedro Rodriguez failed to explain to § 87(2)(b) the reason for a law enforcement activity.	O . Unfounded
P . PO Pedro Rodriguez	Abuse: Police Officer Pedro Rodriguez threatened to arrest § 87(2)(b)	P . Unfounded

Case Summary

On January 22, 2024, § 87(2)(b) filed this complaint with the CCRB via the call-processing system.

On January 21, 2024, at approximately 8:00pm, Sergeant Tonica Corlette and Police Officers Richard Law, Justin Leung, Pedro Rodriguez, Ryan Thatcher, and Jason Toussaint of the 72nd Precinct, responded to a reported dispute at § 87(2)(b), in Brooklyn, where § 87(2)(b) requested that officers remove § 87(2)(b) from his apartment.

Officers entered § 87(2)(b) apartment (**Allegations A and B: Abuse of Authority: Within NYPD Guidelines**). PO Rodriguez pushed § 87(2)(b) (**Allegation C: Force: Substantiated**), spat in his face (**Allegation D: Discourtesy: Unfounded**), and told him to “back the fuck up” (**Allegation E: Discourtesy: Substantiated**). Sgt. Corlette, PO Rodriguez, PO Thatcher, and PO Toussaint refused to provide their names and shield numbers to § 87(2)(b) (**Allegations F-M: Abuse of Authority: Unfounded**). Sgt. Corlette and PO Rodriguez failed to explain to § 87(2)(b) why he was being removed (**Allegations N and O: Abuse of Authority: Unfounded**). PO Rodriguez threatened to arrest § 87(2)(b) (**Allegation P: Abuse of Authority: Unfounded**).

There were no summonses issued or arrests made in relation to this incident.

BWC footage was obtained from Sgt. Corlette, PO Law, PO Leung, PO Rodriguez, PO Thatcher, and PO Toussaint (**BR 01**).

Findings and Recommendations

Allegation (A) Abuse of Authority: On January 21, 2024, Sergeant Tonica Corlette entered § 87(2)(b), in Brooklyn.

Allegation (B) Abuse of Authority: On January 21, 2024, Police Officer Pedro Rodriguez entered § 87(2)(b), in Brooklyn.

At timestamp [01:17] of Sgt. Corlette’s BWC, Sgt. Corlette and PO Law arrive at § 87(2)(b). The building’s security guard, § 87(2)(b) lets them inside the building. § 87(2)(b) says that he gave § 87(2)(b) his hammer. § 87(2)(b) does not explain why he had a hammer. PO Law retrieves the hammer from behind the security desk. PO Rodriguez and PO Thatcher enter the building at timestamp [01:33]. Sgt. Corlette, PO Thatcher, and PO Rodriguez speak with § 87(2)(b) in the lobby and ask him what happened. § 87(2)(b) discusses his negative relationship with § 87(2)(b) and alleges that § 87(2)(b) erased information from his phone without his consent. § 87(2)(b) does not explicitly say that he is the sole resident of the apartment and does not say that the officers can enter the apartment. § 87(2)(b) does not say anything to the officers. At timestamp [03:29] of Sgt. Corlette’s BWC, PO Rodriguez knocks on § 87(2)(b) apartment door. No one answers the door. After 20 seconds, PO Rodriguez tries the handle, and the door opens. PO Rodriguez turns towards Sgt. Corlette who starts moving towards the door and says “hello.” PO Rodriguez gets out his flashlight and announces themselves as the police. PO Rodriguez is the first officer to enter the apartment followed by Sgt. Corlette, PO Thatcher, and PO Law (**BR 16**).

§ 87(2)(b) stated that § 87(2)(b) erased information from his phone and refused to leave his apartment. § 87(2)(b) took a hammer and went downstairs to tell § 87(2)(b) to call the police and tell them to remove § 87(2)(b) from his apartment. When the police arrived, § 87(2)(b) told the officers that § 87(2)(b) was upstairs. The police went to his apartment while § 87(2)(b) remained in the lobby. Although § 87(2)(b) did not see it himself, § 87(2)(b) assumes that the officers entered his apartment on their own because the door was open (**BR 17**).

§ 87(2)(b) the security guard assigned to 408 63rd Street on January 21, 2024, stated that § 87(2)(b) came downstairs with a hammer and called the police to request that they remove § 87(2)(b) from his apartment. During the first call, § 87(2)(b) told the police that he was going to “hit” § 87(2)(b) if they did not remove him. After attempting to speak with § 87(2)(b), § 87(2)(b) called the police himself and informed them that § 87(2)(b) had an argument with a family member and wanted the police to remove him from his apartment **(BR 24)**.

§ 87(2)(b) stated that at the time of the incident he did not know why or how the officers entered the apartment. The next day, § 87(2)(b) learned from § 87(2)(b) that § 87(2)(b) called the police and told the officers to remove § 87(2)(b) from the apartment **(BR 03)**.

PO Rodriguez was interviewed two times. First on March 4, 2024, and a second time on May 28, 2024, so that he could be asked additional questions about the entry into § 87(2)(b)'s apartment. PO Rodriguez stated that PO Law and Sgt. Corlette got to § 87(2)(b) before he did and spoke with § 87(2)(b) and § 87(2)(b) in the lobby. During their conversation, § 87(2)(b) told the officers to enter his apartment and remove § 87(2)(b). When PO Rodriguez called PO Law over the phone to get directions to § 87(2)(b), PO Law conveyed to him that § 87(2)(b) had told the officers to enter his apartment and remove § 87(2)(b) from it **(BR 14) (BR 23)**.

In her first interview on May 13, 2024, Sgt. Corlette stated that she responded to the scene to address a domestic dispute involving a hammer. Upon arrival, Sgt. Corlette found § 87(2)(b) in the lobby of the building holding a hammer. When she and PO Law asked § 87(2)(b) what happened, he told them that he had a dispute with his nephew, who he did not identify by name. Given that § 87(2)(b) had a hammer and confirmed that he had a dispute, they had reason to believe that § 87(2)(b) had been injured and needed to make sure that no one inside the apartment was hurt so they went to his apartment and entered without explicit permission from § 87(2)(b). Officers knocked and when they heard no response entered through the open door **(BR 13)**.

On July 12, 2024, Sgt. Corlette was interviewed a second time. Sgt. Corlette reiterated that she went to § 87(2)(b) in response to a reported domestic dispute with a hammer and met § 87(2)(b) in the lobby. § 87(2)(b) had a hammer though it had been placed on the front desk by the time the officers arrived. Sgt. Corlette believed that § 87(2)(b) was intoxicated because he was both mumbling and speaking in an evasive and confusing manner with the officers, though Sgt. Corlette did not smell any alcohol on his breath and does not remember hearing § 87(2)(b) state that he was drunk. Sgt. Corlette did not see anything about § 87(2)(b)'s physical appearance suggesting that a physical altercation had occurred. Given that § 87(2)(b) did not describe the “dispute” he had with § 87(2)(b) in detail, appeared to be drunk and had a hammer, Sgt. Corlette believed there was a possibility that there had been a physical altercation and § 87(2)(b) was hurt. So, when Sgt. Corlette went to the apartment to investigate the incident and there was no response when they knocked on the door, she decided that officers had to enter the apartment to make sure that § 87(2)(b) was not hurt. There were no other reasons to believe that § 87(2)(b) had been injured **(BR 18)**.

Event Chronology § 87(2)(b) indicates that § 87(2)(b) made a 911 call to report an argument he had with § 87(2)(b) over his use of § 87(2)(b)'s phone and that he wanted § 87(2)(b) to be removed from his home. The Event notes that § 87(2)(b) was armed with a hammer but that there were no injuries involved **(BR 22)**.

In People v. Saturnino, 153 A.D.2d 595 (1989), the court held that consent to enter a home may be provided by conduct, including pointing, as well as words **(BR 15)**.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegations A and B** be closed as **Within NYPD Guidelines**.

Allegation (C) Force: On January 21, 2024, in § 87(2)(b), in Brooklyn, Police Officer Pedro Rodriguez used physical force against § 87(2)(b)

At timestamp [04:02] of PO Rodriguez's BWC, PO Rodriguez walks down the hallway to the living room of § 87(2)(b) apartment. PO Rodriguez is the first to meet § 87(2)(b) standing in the hallway leading to the living room. § 87(2)(b) asks if the officers have a warrant, to which PO Rodriguez responds that they do not need one. After a brief back-and-forth between § 87(2)(b) Sgt. Corlette, and PO Rodriguez, Sgt. Corlette tells officers to exit the apartment. PO Rodriguez turns left to follow Sgt. Corlette as she exits the apartment. At the same moment, § 87(2)(b) takes a step towards PO Rodriguez. Immediately, PO Rodriguez turns back around to face § 87(2)(b) takes a step towards him, and yells to "back the fuck up." § 87(2)(b) briefly raises his left hand up with his palm facing outwards before PO Rodriguez pushes § 87(2)(b) on the chest. § 87(2)(b) falls backwards onto a couch. PO Rodriguez yells at § 87(2)(b) not to "come up" on him. § 87(2)(b) does not touch or make physical contact with PO Rodriguez at any point on PO Rodriguez's BWC (**BR 02**).

§ 87(2)(b) stated he was sitting on the couch when approximately ten officers entered the apartment. Officers told § 87(2)(b) to leave. § 87(2)(b) was brought to his feet and pushed by PO Rodriguez. § 87(2)(b) turned his back to the officers and complied with their orders by exiting the apartment without resistance. PO Rodriguez continued to push § 87(2)(b) as he walked (**BR 03**).

During PO Rodriguez's first interview on March 4, 2024, he stated that he felt uneasy once he entered the apartment because § 87(2)(b) was holding a cooking pot which he was pretending to stir despite there being nothing to stir inside it. § 87(2)(b) asked the officers to leave, and Sgt. Corlette complied, telling the officers to leave the apartment. As PO Rodriguez was turning around to leave the apartment, he felt the pot touch the back of his right shoulder blade. PO Rodriguez turned around and pushed § 87(2)(b) back out of concern for his safety. PO Rodriguez noted that § 87(2)(b) is larger than him and that this was a factor in his mind when he decided to push § 87(2)(b). Prior to this interview PO Rodriguez was shown his own BWC from timestamp [03:44] to [12:10] (**BR 04**).

During PO Rodriguez's second interview on May 28, 2024, PO Rodriguez identified the moment on his BWC footage at which he felt the pot on his back as timestamp [04:58]. PO Rodriguez stated that BWC makes it appear as if § 87(2)(b) is farther away from him at this point than he was, which was about one foot (BR 14) (BR 23).

NYPD Patrol Guide Procedure 221-01 states that when appropriate and consistent with personal safety, members of service will use de-escalation techniques to safely gain voluntary compliance from a subject to reduce or eliminate the necessity to use force. In situations in which this is not safe and/or appropriate, members of service will use only the reasonable force necessary to gain control or custody of a subject. The use of deadly physical force against a person can only be used to protect members of service and/or the public from imminent serious physical injury or death. In determining whether the use of force is reasonable, members of service should consider the following factors among others: The nature and severity of the circumstances, actions taken by the subject, duration of the action, immediacy of the perceived threat or harm to the subject, members of service and/or bystanders, whether the subject is actively resisting custody, and whether the subject is attempting to evade arrest by flight (BR 05).

§ 87(2)(g)

Therefore, it is recommended that Allegation C be closed as **Substantiated**.

Allegation (D) Discourtesy: On January 21, 2024, in § 87(2)(b) in Brooklyn, Police Officer Pedro Rodriguez acted discourteously toward § 87(2)(b)

Allegation (E) Discourtesy: On January 21, 2024, in § 87(2)(b), in Brooklyn, Police Officer Pedro Rodriguez spoke discourteously to § 87(2)(b)

At timestamp [04:59] of PO Rodriguez's BWC, § 87(2)(b) yells at the officers to leave the apartment and takes a step towards PO Rodriguez as officers are exiting the apartment. PO Rodriguez turns back towards § 87(2)(b) takes a step forward, and yells at him to "back the fuck up." At timestamp [09:45] of PO Rodriguez's BWC, as § 87(2)(b) and PO Rodriguez are engaged in a back-and-forth argument, PO Rodriguez tells § 87(2)(b) that he is not "in control of shit right here." At no point in PO Rodriguez's BWC does PO Rodriguez spit on § 87(2)(b) (BR 02).

§ 87(2)(b) stated that PO Rodriguez yelled at him to get out of the apartment and spat on him. § 87(2)(b) did not claim that PO Rodriguez used discourteous language with him (BR 03).

PO Rodriguez told § 87(2)(b) to "back the fuck up" and that he was "not in control of shit." PO Rodriguez was concerned for his own safety when he told § 87(2)(b) to "back the fuck up" because he felt the cooking pot § 87(2)(b) was holding on his right shoulder blade. Whereas when he told § 87(2)(b) that he was not in control of "shit" he wanted to emphasize to § 87(2)(b) that he would not be able to "bully" the officers. He used discourteous language towards § 87(2)(b) because it was part of the "vernacular." PO Rodriguez denied spitting on § 87(2)(b) (BR 04).

Patrol Guide Procedure 200-02 states that MOS must respect the dignity of each individual and perform their duties with courtesy and civility (BR 06).

Disciplinary Case No. 2017-17005 found that while officers are permitted to use discourteous language during stressful situations, this permission is extended only when scenes are so chaotic that the duty of courteousness and professional behavior should be overridden by the immediate need to maintain order (**BR 07**).

PO Rodriguez's BWC refutes the allegation that PO Rodriguez spit on § 87(2)(b). Therefore, it is recommended that **Allegation D** be closed as **Unfounded**.

§ 87(2)(g)

it is recommended that **Allegation E** be closed as **Substantiated**.

Allegation (F) Abuse of Authority: On January 21, 2024, in § 87(2)(b), in Brooklyn, Sergeant Tonica Corlette refused to provide her name to § 87(2)(b).

Allegation (G) Abuse of Authority: On January 21, 2024, in § 87(2)(b), in Brooklyn, Sergeant Tonica Corlette refused to provide her shield number to § 87(2)(b).

Allegation (H) Abuse of Authority: On January 21, 2024, in § 87(2)(b), in Brooklyn, Police Officer Pedro Rodriguez refused to provide his name to § 87(2)(b).

Allegation (I) Abuse of Authority: On January 21, 2024, in § 87(2)(b), in Brooklyn, Police Officer Pedro Rodriguez refused to provide his shield number to § 87(2)(b).

Allegation (J) Abuse of Authority: On January 21, 2024, in § 87(2)(b), in Brooklyn, Police Officer Ryan Thatcher refused to provide his name to § 87(2)(b).

Allegation (K) Abuse of Authority: On January 21, 2024, in § 87(2)(b), in Brooklyn, Police Officer Ryan Thatcher refused to provide his shield number to § 87(2)(b).

Allegation (L) Abuse of Authority: On January 21, 2024, in § 87(2)(b), in Brooklyn, Police Officer Jason Toussaint refused to provide his name to § 87(2)(b).

Allegation (M) Abuse of Authority: On January 21, 2024, in § 87(2)(b), in Brooklyn, Police Officer Jason Toussaint refused to provide his shield number to § 87(2)(b).

At timestamp [05:05] of PO Thatcher's BWC, § 87(2)(b) requests "everybody's names and badge numbers." About 30 seconds later, § 87(2)(b) directs his request directly to Sgt. Corlette, PO Rodriguez, and PO Thatcher, and all three of them provide their names and shield numbers (**BR 19**).

At timestamp [07:34] of PO Toussaint's BWC, § 87(2)(b) asks PO Toussaint for his shield number. PO Toussaint provides his shield number (**BR 08**).

§ 87(2)(b) made multiple requests for officers' names and shield numbers as he was being removed from the apartment and none of the officers complied with his requests (**BR 03**).

BWC footage from PO Thatcher and PO Toussaint shows that Sgt. Corlette, PO Rodriguez, PO Thatcher, and PO Toussaint verbally provided their names and shield numbers. Therefore, it is recommended that **Allegations F-M** be closed as **Unfounded**.

Allegation (N) Abuse of Authority: On January 21, 2024, in § 87(2)(b), in Brooklyn, Sergeant Tonica Corlette failed to explain to § 87(2)(b) the reason for a law enforcement activity.

Allegation (O) Abuse of Authority: On January 21, 2024, in § 87(2)(b), in Brooklyn, Police Officer Pedro Rodriguez failed to explain to § 87(2)(b) the reason for a law

enforcement activity.

At timestamp [08:30] of PO Rodriguez's BWC, Sgt. Corlette tells § 87(2)(b) that he is being escorted out of § 87(2)(b)'s apartment because § 87(2)(b) does not want him there and he does not live in the apartment. At timestamp [09:25] of PO Rodriguez's BWC, § 87(2)(b) asks PO Rodriguez why the officers are removing him. PO Rodriguez tells § 87(2)(b) that he does not live in § 87(2)(b) apartment and § 87(2)(b) had asked for his removal (**BR 02**).

§ 87(2)(b) stated that he asked officers multiple times to explain why he was being escorted out of the apartment and was never given any reason (**BR 03**).

PO Rodriguez's BWC shows that § 87(2)(g) Sgt. Corlette and PO Rodriguez explained the reason why he was being removed from the apartment. Therefore, it is recommended that **Allegations N and O** be closed as **Unfounded**.

Allegation (P) Abuse of Authority: On January 21, 2024, in § 87(2)(b), in Brooklyn, Police Officer Pedro Rodriguez threatened to arrest § 87(2)(b)

At no point on PO Rodriguez's BWC does PO Rodriguez threaten § 87(2)(b) with arrest (**BR 02**).

§ 87(2)(b) stated that PO Rodriguez threatened to arrest him if he returned to the apartment (**BR 03**).

§ 87(2)(g)
it is recommended that **Allegation P** be closed as **Unfounded**.

Civilian and Officer CCRB Histories

- This is the first CCRB Complaint to which § 87(2)(b) has been party (**BR 10**).
- This is the first CCRB Complaint to which § 87(2)(b) has been a party (**BR 21**).
- Sgt. Corlette has been a member of service for 20 years and has been a subject in 14 CCRB complaints and 29 allegations, of which 2 were substantiated:
 - 201401347 involved one substantiated allegation of Abuse-Retaliatory Summons. The Board recommended Formalized Training and the NYPD imposed Instructions.
 - 201605977 involved one substantiated allegation of Abuse-Premises Entered and/or Searched. The Board recommended Formalized Training and the NYPD imposed Formalized Training.
 - § 87(2)(g)
- PO Law has been a member of service for 8 years and has been a subject in 2 CCRB complaints and 4 allegations, of which 2 were substantiated:
 - 201710392 involved two substantiated allegations of Abuse-Refusal to Process Civilian Complaint. The Board recommended Command Discipline A and the NYPD imposed Command Discipline A.
 - § 87(2)(g)
- PO Rodriguez has been a member of service for 17 years and has been a subject in 12 CCRB complaints and 34 allegations, of which 10 were substantiated:
 - 201904012 involved substantiated allegations of Abuse-Entry of Premises, Abuse-Failure to Provide RTKA Card, Abuse-Search of Premises, Abuse-Threat to Damage/Seize

Property against PO Rodriguez. The Board recommended Formalized Training and the NYPD imposed Formalized Training.

- 202305261 involved substantiated allegations of Force-Physical Force against PO Rodriguez. The Board recommended Command Discipline B and the NYPD has not yet imposed discipline.
- 202305261 involved substantiated allegations of Abuse-Improper Use of Body-Worn Camera, Abuse-Retaliatory Summons, Abuse-Stop, Abuse-Threat of Arrest, Abuse-Unlawful Summons against PO Rodriguez. The Board recommended Command Discipline Charges, Charges, Command Discipline A, Command Discipline B, and Charges, respectively, and the NYPD has not yet imposed discipline.
- § 87(2)(g)
- PO Toussaint has been a member of service for one year. This is the first CCRB Complaint in which he is a subject.
- PO Thatcher has been a member of service for two years. This is the first CCRB Complaint in which he is a subject.

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of March 26, 2024, the Office of the New York City Comptroller has no record of any notices of claims being filed by § 87(2)(b) regarding this incident (**BR 12**)
- On October 10, 2024, a Freedom of Information Law request was made to the Office of the New York City Comptroller to determine whether § 87(2)(b) filed a notice of claims regarding this incident. Upon receipt, the results will be uploaded to the electronic case file (**BR 25**).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]

§ 87(2)(g)

[REDACTED]

Squad No.: 11

Investigator: Noe Lebanidze
Signature

Inv. Noe Lebanidze
Print Title & Name

10/10/2024
Date

Squad Leader:	Edwin Pena	IM Edwin Pena	10/10/24
	Signature	Print Title & Name	Date

Reviewer:			
	Signature	Print Title & Name	Date